

the Court has regard to the trust, and will not construe *general* words to pass the trust * estate where [*226] the assurance, if so construed, would amount to a breach of trust (*a*).

9. **May devise or bequeath it.** — As the trustee may at law dispose of the property in his lifetime, so he may devise or bequeath it at his death; [but in the case of a trustee or mortgagee dying after the 31st December, 1881, “any estate or interest of inheritance, or limited to the heir as special occupant, in any tenements or hereditaments, corporeal or incorporeal,” will, notwithstanding any testamentary disposition devolve on the personal representative of the trustee or mortgagee, in the same manner as if it were a chattel real (*b*). It is therefore useless for a trustee or mortgagee to devise property of the above description, and the title to such property must be made through the legal personal representative.]

But a trust estate will not in all cases *pass by the same words* in a will as a beneficial ownership would, for wherever the estate does not pass by operation of law solely, but through the medium of the intention, it becomes necessary, in order to ascertain the effect of the instrument, to take into consideration the particular circumstances of the trust.

10. **In what cases the trust estate will pass by a general devise.** — Whether a trust estate shall pass inclusively in a *general devise*, is a question that has been frequently under discussion,¹ [and notwithstanding the change in the law introduced by the Conveyancing and Law of Property Act, 1881 (*c*), is still a question of importance where the death

(*a*) *Fausset v. Carpenter*, 2 Dow. & Cl. 232; 5 Bligh, N. S. 75; and see *St. Leonards' H. L. Cases*, 76; *Re Waley's Trust*, 3 Eq. R. 380. [*(b)* 44 & 45 Vict. c. 41, s. 30, and see *ante*, p. 222.] [*(c)* 44 & 45 Vict. c. 41, s. 30.]

¹ *Devise of trust estates.* — “A general devise of real estate will pass estates vested in the testator as trustee or mortgagee, unless a contrary intention can be collected from the expressions of the will, or from the purposes or limitations to which the devised lands are subjected”; Hill on Trustees, 283; and this is the general rule in America; *Ballard v. Carter*, 5 Pick. 112; *Richardson v. Woodbury*, 43 Me. 206; *Taylor v. Benham*, 5 How. 270; *Hughes v. Caldwell*, 11 Leigh, 342; *Jackson v. Delancy*, 13 Johns. 537; a devise of all one's estate passes trust property; *Bangs v. Smith*, 98 Mass. 273; *Willard v. Ware*, 10 Allen, 263; *Stone v. Hackett*, 12 Gray, 227; so a devise to one, his heirs